

**SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX**

X

ASHBURNE MORTON,

Index No.

Plaintiff,

ECF

VERIFIED COMPLAINT

-against

**Plaintiff Designates Bronx
County as the Place of Trial.
Jury Trial Demanded**

CITY OF NEW YORK, CITY OF NEW YORK FIRE DEPARTMENT,
NEW YORK CITY POLICE DEPARTMENT, P.O. JAMIMET ROSARIO,
SHIELD No. 27058, IN HER INDIVIDUAL AND OFFICIAL CAPACITY,
SHANELL HOLLIS, ID. NO. 2841, EMT BASIC (DS)(DH), IN HER
INDIVIDUAL AND OFFICAL CAPACITY, AND ROBERT PIKE,
ID NO. 3889, EMT BASIC, (DOC), IN HIS INDIVIDUAL AND OFFICIAL CAPACITY,
And JOHN DOES 1-3, POLICE OFFICERS OF THE CITY OF NEW YORK.

Defendantss,

X

Plaintiff, Ashburne Morton, by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and police officer Jamimet Rosario, and Emergency Medical Technicians Shanell Hollis, and Robert Pike and the unknown police officers John Does 1-3, who are New York City Police Officers believed to be assigned to the 42nd Police Precinct.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in their unreasonable and unlawful search, seizure and arrest of Mr. Ashburn Morton on July 31, 2020 who was seeking medical treatment inside the officers of the New York Renal Associates located at 3468 Park Ave. Bronx, New York.

2. Mr. Morton, a stage 5 Renal failure patient was assigned to the above office for medical treatment. Plaintiff was denied medical treatment when he questioned the procedures to be used by the staff at the facility.

3. Mr. Morton was forcibly placed in handcuffs by officer Jamimet Rosario and other members of the New York City Police Department.

4. Defendants, Shanell Hollis and Robert Pike, both of whom are employed by the New York City Fire Department as Emergency Medical Technicians (EMT), assisted the officers in the unlawful restraint of the Plaintiff by placing Mr. Morton inside their EMT vehicle and forcing Plaintiff inside the vehicle where he was driven to Bronx Care Lebanon Hospital against Plaintiff's will and without his consent..

5. After approximately five hours, Mr. Morton was released from Bronx Lebanon Hospital where he remained in handcuffs until his release from Lebanon Hospital some five hours later.

6. No criminal charges were filed against the Plaintiff by the Defendant Police officers.

7. That the underlying Defendants, officer Jamimet Rosario, and Emergency Medical Technicians Shanell Hollis, and Robert Pike and the unknown police officers John Does 1-3, knowingly and willfully with deliberate indifference to Plaintiff's Constitutional rights, engaged in a pattern of abuse against the Plaintiff which cause Mr. Morton to be seized and deprived of his liberty without probable cause or legal justification.

8. Plaintiff, Ashburn Morton, now brings this action pursuant to 42 U.S.C Section 1983, and under New York State Law for the violations of his constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States and pursuant to New York State law.

JURISDICTION AND VENUE

9. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the Bronx, and State of New York.

10. This action arises under the Fourth, and Fourteenth Amendments to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, and 1988, and under New York State Law.

11. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action predicated under 42 U. S. C. Section, 1983.

12. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the Bronx, and of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

13. Plaintiff, Ashburn Morton is a forty-one (41) year old African American who suffers from stage five (5) renal failure which was diagnosed prior to the occurrence of this incident complained of herein.

14. Mr. Morton has been receiving dialysis treatment three times per week for his renal failure for several years prior to the incident on July 31, 2020.

15. Plaintiff at all times relevant herein was and still remains a resident of the County of the Bronx, State of New York and is a citizen of the United States.

16. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

17. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department and the Fire Department as constituent Department or Agencies.

18. That at all times relevant hereto, the City of New York employed the Defendant Police Officers involved in this incident, Jamimet Rosario and John Does 1-3.

19. That the New York City Fire Department is an agency of the City of New York who employed Defendants Shanell Hollis and Robert Pike.

20. That at all times relevant herein, Defendants Police officers Jamimet Hollis and the John Does 1-3, were duly appointed as police officer of the New York City Police Department who are believed to be assigned to the forty second (42nd) Police precinct located in the Bronx, New York who directly participated in Plaintiff's seizure by placing handcuffs on the Plaintiff and forcing him inside the New York City Fire Department's emergency medical vehicle without Plaintiff's consent.

21. That the Defendant police officers were at all times mentioned in this Complaint, agents, servants, and employees, acting within the scope of their employment by the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

22. That at all times relevant hereto, the New York City Police Department ("NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

23. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police

Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

24. That at all times relevant hereto, Defendant New York City Police Department was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

25. That at all relevant times, the individual police officers involved in this incident acted under the color of state law.

26. At all times relevant herein , the police officers involved in the underlying incident were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department within the scope of their employment and as such acted under color of state law.

27. That at all times mentioned herein, Defendants police officers Jamimet Rosario and John Does 1-3, are currently employed by the New York City Police Department as police officers believed to be assigned to the 46th police precinct.

28. That at all times relevant hereto, the City of New York , through the Fire Department of New York, employed the Defendant EMT or Emergency Medical Technicians (hereinafter, "EMT), Shanell Hollis and Robert Pike, involved in this incident.

Fire Department City of New York

29. The Fire Department of New York, officially , the Fire Department of City of New York, (FDNY), is a department or agency of the government of the City of New York that's provides fire protection, technical rescue services as well as responses to medical emergency responses to the five boroughs of the City of New York.

30. The Fire Department hired and trained the individual Defendants as Emergency Medical Technicians, (EMT), on the date of this incident.

Shanell Hollis

31. Defendant Shanell Hollis at all times relevant herein was employed by the City of New York's Fire Department and was acting within the scope of her employment as an emergency medical technician on July 31, 2020, when she assisted officer Jamimet and John Does 1-3, of the New York City Police Department in depriving Plaintiff of his Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States and under New York State Law.

Robert Pike

32. Robert Pike, was at all times mentioned herein employed by the Fire Department City of New York and was acting within the scope of his employment as an emergency medical technician who engaged in an unconstitutional act of driving Plaintiff Ashburne Morton to the Bronx, Lebanon Hospital in handcuffs and against Plaintiff will and without Plaintiff's consent.

JURY DEMAND

33. Plaintiff demands trial by jury.

NOTICE OF CLAIM

34. On August 27, 2020, Mr. Morton , in furtherance of his New York State causes of action, filed a timely notice of claim well within the statutory requirement of ninety days from the date of the incident alleged herein against the named Defendants and the City of New York, New York City Police Department and police officers Rosario and New York City Fire Department employees, Shanell Hollis and Robert in compliance with General Municipal Law Section 50-h.

35. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

36. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

37. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

38. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

39. That by reason of the foregoing, Plaintiff, Ashburne Morton has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

40. The incident complained of occurred on July 31, 2020, at the New York Renal Associates office located at 3468 Park Ave. Bronx, New York at approximately 10:am.

41. Mr. Morton had previously been diagnosed with stage 5 Renal failure which required Plaintiff to undergo medical treatment for dialysis.

42. The treatment for dialysis required Mr. Morton to connect his body to a machine for a period of four hours, three time a week to treat his dialysis.

43. Morton received his initial medical treatment at the Montefiore Hospital in the Bronx, New York.

44. On the morning of July 31, 2020, Plaintiff had experienced extreme weakness, and shortness of breath directly attributed to his renal failure.

45. Mr. Morton had previously received treatment at the Montefiore Hospital.

46. That prior to the July 31, 2020, incident complied of, Mr. Morton was advised by staff members at Montefiore Hospital to further seek medical treatment at the Davita Kidney Care Center located at 931 Bruckner Blvd., Bronx, New York .

47. Mr. Morton had been receiving treatment Davita for approximately three weeks prior to the date of this incident.

48. On July 30, 2020, Mr. Morton received notification from a social worker informing Mr. Morton that his treatment for dialysis would be rendered by the New York Renal Associates located on 3468 Park Ave. Bronx, New York, on July 31, 2020.

49. On July 31, 2020, at approximately 5:30 am, Mr. Morton arrived at the New York Renal Center for his weekly dialysis treatment per instructions by the Davita Kidney Care Center.

50. Upon Plaintiff's arrival ,an unidentified nurse at the New York Renal Center informed the Plaintiff that she was getting everything set up in anticipation for Mr. Morton's medical treatment.

51. That prior to receiving his treatment, Mr. Morton had a few questions and concerns that he wanted to ask the attendant before subjecting himself to the center's medical treatment.

52. The nurse however, declined to answer Plaintiff's concerns and told Mr. Morton that he should come back to the center at 10:am to speak with the association's manger regarding his medical concerns.

53. Mr. Morton left the center as instructed and reappeared at 10:am to speak with the manager and to obtain answers to his questions regarding the New York Renal Center's anticipated medical treatment which was previously scheduled by the Davit Kidney Care Center.

54. As Mr. Morton waited inside the New York Renal Associates office, an unidentified Asian man claiming to be the manager, approached the Plaintiff and informed Plaintiff that he would not be treated at the New York Renal Associates Center because his hemoglobin count was low.

55. That the individual posing as the boss of the New York Renal Associates informed Mr. Morton that “when you come to my facility you obey rules”.

56. Mr. Morton had not knowingly violated any such rules other than to raise questions regarding the procedures that were to be followed by the agency and their policy in treating and respecting patients.

57. The manager continued to disparage Mr. Morton and refused to respond to Plaintiff’s concerns regarding his health.

58. That the manager of the New York Renal Associates responded by telling Mr. Morton that “if you’re the kind of patient that feels he knows his body best and you don’t feel, then we don’t want you here.”

59. Mr. Morton responded by telling the manager of his right to ask questions regarding the anticipated treatment he was about to receive by stating, “Because I am sick, I don’t have a choice or a say in my treatment?”

60. That the manager of the Center replied “No you have no choice, your hemoglobin level is 5, and we don’t treat patients here with those numbers”!

61. Mr. Morton responded by saying “how do you know what my hemoglobin numbers are, you didn’t take blood from me.”?

62. The unknown manager at the facility then told Mr. Morton, “I’m sending you to the hospital then you can get treated for today.”

63. Mr. Morton, however, informed the staff members and the manager at the center that he did not want to go to the hospital and that he just wanted to go back home and get treated on Monday at Montefiore Hospital where he received his normal treatments and where he felt more comfortable.

64. Mr. Morton however was seized by New York City Police officers as he attempted to leave the New York Renal Center.

65. Officer Rosario and three other unidentified members of the New York City Police officers immediately surrounded Mr. Morton who was in a weaken physical state and threatened him with arrest.

66. The Defendant police officers and a security guard at the Renal Center along with EMT members, Shanell Hollis and Robert Pike all told the Claimant that he had to go to the hospital.

67. Plaintiff informed the officers and the EMT Defendants that he did not want to go to any hospital other than Montefiore Hospital in the Bronx.

68. The police officers then grabbed Mr. Morton and placed Plaintiff's hands behind his back whereby the officers placed Plaintiff's hand in handcuffs.

69. The Defendants officers forced used in grabbing Plaintiff and placing Plaintiff's hands behind his back caused Mr. Morton to fall to the ground.

70. Officer Rosario and the unknown police officers forced Mr. Morton inside the NYFD EMT vehicle.

71. One of the arresting officers told Mr. Morton to **" get your ass up you are a big boy now."**

72. Mr. Morton, with his hands in handcuffs asked the female police officer, Rosario, “where are you taking me, am I under arrest”?

73. Officer Rosario told Mr. Morton that he was not under arrest even though he was seized and handcuffed by the Defendants.

74. Mr. Morton was forced into police custody with both hands in handcuffs.

75. Mr. Morton asked officer Rosario that “ **If I’m not under arrest then why are my hands in handcuffs? “ Take them off”!**

76. Officer Rosario responded by telling Mr. Morton that she could not take the handcuffs off and proceeded to place the Plaintiff inside the ambulance with the assistance of three other New York City Police officers and Shanell Hollis and Robert Pike all of whom forced Plaintiff inside the awaiting ambulance.

77. The EMT employees, Shanell Hollis and Robert Pike drove the Plaintiff to the Bronx Care Lebanon Hospital against Mr. Morton’s consent.

78. Officer Rosario sat in the back seat of the ambulance with Mr. Morton still in handcuffs.

79. Upon arrival at the hospital and after a period of five hours, Mr. Morton was released and allowed to leave.

80. No charges were filed against the Plaintiff nor did the Defendants give Plaintiff a reason for his imprisonment..

81. Mr. Morton was held in handcuffs during his forced entry into the ambulance by the Defendants as the EMT operators drove the Plaintiff to the Bronx Lebanon Hospital against the will of the Plaintiff and without probable cause or legal justification.

82. Mr. Morton had not been engaged in any criminal activity at the time of his arrest nor was he charged by the Defendant police officers with any form of criminal activity.

83. Each of the Defendants, police officer Rosario and the EMT operators were acting within the scope of their employment and under color of state law on the date of this complaint.

84. That Defendants caused Mr. Ashburne Morton to suffer severe emotional stress and loss of liberty due to the Defendants officers and the Emergency Medical Technicians, Shanell Hollis and Robert Pike unreasonable restraint that forced Mr. Morton inside a New York City medical ambulance and drove Plaintiff against his will and without his consent to Bronx Lebanon Hospital.

85. That the seizure of the Plaintiff by the Defendants, police officers Rosario and John Does 1-3, and the EMT operators Shanell Hollis and Robert Pike exacerbated and caused Mr. Morton anxiety, stress, pain and suffering with deliberate indifference to Mr. Morton's Constitutional right to be free from unreasonable search and seizure.

86. That the Defendants knew or should have known that their arrest and restraint of the Plaintiff created a known risk to Mr. Morton's physical and mental health and that their actions would cause further deterioration of Plaintiff's physical and mental wellbeing.

87. The officers' and EMT employees' actions were outrageous and intended to cause Mr. Morton aggravation, humiliation and embarrassment.

88. That Mr. Morton suffered undue hardship, embarrassment, humiliation and degradation due to the unlawful act of the Defendants, Rosario and Shanell Hollis and Robert Pike

89. Upon arriving at the Bronx Care Hospital, Plaintiff was seen by Dr. Julian Rothschild.

90. Dr. Rothchild acknowledged in his medical report that Mr. Morton “is awake, alert, oriented not hypoxic, not intoxicated, not under duress and in my opinion, has the capacity to make medical decisions.”

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS, , P.O. JAMIMET ROSARIO, JOHN DOES 1-3, SHANELL HOLLIS, AND ROBERT PIKE, PURSUANT TO 42 U.S. C. SECTION 1983, FOR VIOLATING PLAINTIFF’S CONSTITUTIONAL RIGHTS UNDER THE FOURTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES AND UNDER THE CONSTITUTION OF THE STATE OF NEW YORK ARTICLE 1 SECTION 12.

91. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered”1 through “90’ with the same force and effect as though more fully set forth at length herein,

92. That at all times herein mentioned the Plaintiff, was unlawfully seized, detained, restrained and held in custody on July 31, 2020.

93. That Defendants violated Mr. Morton’s Fourth Amendment right against unreasonable seizure.

94. Plaintiff was placed in imminent fear for his health, safety and life due to the Defendant’s willful actions of forcing Mr. Motor inside the New York City Fire Department’s emergency vehicle without probable cause to have reasonably and objectively believed that Plaintiff had been engaged in criminal activity.

95. That Mr. Morton suffered emotional pain, humiliation, and degradation, due to the Defendant’s police officers forcible placing handcuffs on the Plaintiff without just case.

96. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably seized Mr. Morton while he was seeking medical treatment inside the New York Renal Associates’ Center as more fully described in the preceding paragraphs.

97. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably force Mr. Morton inside the New York Fire Department's emergency medical vehicle, in handcuffs and drove the Plaintiff against his will to Bronx Lebanon Hospital in an attempt to force the Plaintiff to obtain treatment for his dialysis.

98. That the Defendant police officers named herein, unlawfully arrested and imprisoned Plaintiff Ashburne Morton without probable or legal justification with the aide and assistance of the EMT New York City Fire Department employees, Shanell Hollis and Robert Pike.

99. That Plaintiff Morton was caused to suffer extreme emotional distress, trauma, embarrassment, ridicule, scorn, and depravation of his civil rights caused by the Defendants willful and unlawful seizure of the Plaintiff.

100. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
AND THE NEW YORK CITY FIRE DEPARTMENT PURSUANT TO 42 U.S.C.
SECTION 1983, FOR FAILUER TO TRAIN, SUPERVISE OR DISCIPLINE
DEFENDANTS P.O. JAMIMET ROSARIO, AND EMT OPERATOR SHANELL
HOLLIS, AND ROBERT PIKE.**

101. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 100", with the same force and effect as though more fully set forth at length herein.

102. That at all times herein mentioned the individual Defendants of the New York City Police Department and Jamimet Rosario and Robert Pike of the New York City Fire Department all of whom were directly involved in the incident complained of herein, as set forth above, were negligently hired, trained, supervised, disciplined, and retained by the Defendant, City of New York and the New York City Fire Department.

103. That the acts complained of herein resulted from the Defendants City of New York, and the New York City Police Department, and the New York City Fire Department through their agents, servants and employees, breaching its duty to properly train, supervise, and discipline their employees within the City of New York.

104. That the City of New York and the New York City Fire Department failed to train, supervise, or discipline the municipal Defendants named herein who unlawfully held and detained Plaintiff and forced Plaintiff to go to a hospital in handcuffs without probable cause or legal justification.

105. That the Defendants City of New York and the New York City Fire Department failed to properly assign, train, supervise or discipline the Defendant police officers and EMT operators.

106. That the failure of the New York City Police and Fire Department to train, supervise or discipline its municipal employees involved in this incident herein, constituted a practice of acquiescence, and a tolerance of ongoing unconstitutional detentions, and seizures, which allowed the individual Defendants to believe that they could violate Plaintiffs' constitutional rights with impunity.

107. By reason of the foregoing, the individual defendants individually, and through defendant's agents, servants and employees, failed, and refused to use such care in the performance of their duties as a reasonably prudent police officer and reasonably prudent EMT operator would have used under similar circumstances, thus resulting in significant emotional injuries to the Plaintiff including his loss of liberty and permanent emotional distress.

108. That the City of New York should be held liable for the underlying constitutional violations committed by non-policy makers employees due to the fact that the City's policy and

customs of inaction is objectively indifferent to the likelihood that a constitutional violation would occur.

109. That there was an obvious need for additional training and supervision which the City was aware of and failed to provide.

110. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff under 42 U.S.C. Section 1983 for the violations of the municipal Defendants, Rosario, Hollis and Pike, all of whom acted under color of state law, for violating Plaintiff's right to be free from the deprivation of liberty without due process of law under the Fourteenth Amendment to the United States Constitution.

111. That the failure of the City of New York, the New York City Police Department, and the New York City Fire Department to adequately train, supervise or discipline or in any other way control the behavior of the municipal Defendants identified herein in the exercise of their official functions, and their failure to enforce the laws of the State of New York, and the regulations of the City of New York Police Department and the New York City Fire Department is evidence of the reckless lack of cautious disregard for the rights of the Plaintiff, Ashburne Morton.

112. That the need for more or better supervision, or training to protect against the constitutional violation described more fully in the preceding paragraphs was patently obvious which the City of New York failed to provide.

113. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS JAMIMET
ROSARIO, SHANELL HOLLIS, AND ROBERT PIKE AND JOHN DOES 1-3, UNDER
42 U.S.C SECTION 1983 AND PER NEW YORK STATE LAW FOR FALSE ARREST
AND FALSE IMPRISONMENT**

114. That Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs “1 through “113”, with the same force and effect as though more fully set forth at length herein.

115. That by reason of the foregoing, the Plaintiff was intentionally confined without privilege or probable cause to believe that Plaintiff was engaged in unlawful activity on July 31, 2020, while Plaintiff was seeking medical treatment inside the New York Renal Associate’s Center.

116. That Plaintiff was aware of and did not consent to his confinement.

117. Mr. Morton was thereby falsely arrested and detained and imprisoned by Defendants Rosario, Hollis, Pike and John Does 1-3.

118. As a direct and proximate result of the above described unlawful and malicious acts of the Defendants committed under color of their authority as police officers while acting in that capacity, Plaintiff sustained injuries and suffered emotional damages all of which resulted in the violation of Plaintiff’s rights under the laws and Constitution of the United States, in particular the Fourth and Fourteenth Amendments AND UNDER New York State Law.

119. The common law tort of false arrest is a species of false imprisonment, and action derived from the ancient common- law action of trespass [that] protects the personal interest of freedom from restraint of movement.” Singer v. Fulton County Sheriff, 63 F. 3d 110, (2d Cir. 1995) (quoting Broughton v. State of New York, 37 N.Y. 2d at 93, 335 N.E 2d at 314.

120. Under New York Law, there are four elements of a false imprisonment claim: (1) the defendant intended to confine the plaintiff, (2), the plaintiff was conscious of the confinement, (3) the plaintiff did not consent to the confinement, and (4) the confinement was not otherwise privileged.” Id. The Singer Court also cited Hygh v. Jacobs, 961 F 2d 359, at 366 (“the

elements of a claim of false arrest under section 1983 are substantially the same as the elements of a false arrest claim under New York Law.”

121. Plaintiff’s claim under section 1983 for false arrest recognizes the same state elements, but also rests on the right of the individual to be free from unreasonable seizures, including arrest without probable cause.

122. Mr. Morton was intentionally and unlawfully confined by the Defendants, police officers Rosario, John Does 1-3, and New York City Fire Department employees Hollis and Pike.

123. That Plaintiff was sufficiently and significantly deprived of his liberty, and was not free to move because his liberty was severely restricted by the Defendants.

124. Plaintiff was conscious of the Defendant’s illegal restraint and use of force and was well aware of the facts that he was being tormented by Officers Rosarios and John Does, 1-3, and by Hollis and Pike, without probable cause.

125. As a direct and proximate cause of Defendants unlawful actions, Plaintiff was caused to have suffered harm and sever emotional stress, and loss of liberty.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE CITY OF NEW YORK , THE NEW YORK CITY FIRE DEPARTMENT,
JAMIMET ROSARIO , SHANELL HOLLIS, AND ROBERT PIKE UNDER 42 U.S.C
SECTION 1983 FOR VIOLATING PLAINTIFF’S RIGHTS UNDER THE DUE
PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT TO THE
CONSTITUTION OF THE UNITED STATES**

126. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs “1 through 125 ”, with the same force and effect as though more fully set forth at length here herein.

127. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Mr. Morton's right to free from the deprivation of liberty without due process of law.

128. As direct and proximate result of the unlawful and outrageous conduct of Defendants Rosario, Hollis and Pike and the unknown police officers John Does 1-3, Mr. Morton has been greatly injured, humiliated, and embarrassed.

129. That due to the shocking and outrageous conduct of Police Officer Rosarios, and the emergency medical technicians Hollis and Pike, Mr. Morton has suffered great pain and an exacerbation of his prior medical condition, without legal justification.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANTS, POLICE OFFICER JAMIMET ROSARIO, JOHN DOES 1-3, SHANELL HOLLIS AND ROBERT PIKE PURSUANT TO 42. U.S.C SECTION 1983, FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE FORCE UNDER THE FOURTH AND FOURTEENTH AMENDMENTS TO THE CONSTITUTION OF THE UNITED STATES

130. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs numbered "1 through 129", with the same force and effect as though more fully set forth at length herein.

131. That all of the individually named Defendants in this action were at all times relevant hereto, acting under the color of state law in their capacity as police officers of the City of New York and as Emergency Medical Technicians employed by the New York City Fire Department.

132. That the Individual Defendants acts or omissions occurred within the scope of the Defendants' official duties of employment.

133. That at the time of the events complained of, Plaintiff had a clearly established and defined Constitutional right under the Fourth Amendment to be secure in his person from an unreasonable seizure and from unreasonable use of force.

134. Plaintiff also had the clearly established Constitutional right under the Fourteenth Amendment to bodily integrity and to be free from excessive force by law enforcement.

135. That any reasonable police officer and reasonable Emergency Medical Technician under the New York City Fire Department knew or should have known of these rights at the time of the conduct complained of herein as they were clearly established at that time.

136. Defendants Rosario, Hollis and Pike's and John Does use of force, as described herein, were objectively unreasonable in light of the facts and circumstances clearly violated Plaintiff's Fourth Amendment rights.

137. That the individually named Defendant's actions toward Mr. Morton of pushing him to the ground exacerbating his stage 5 renal condition which was or should have been known to the Defendants as described herein, was malicious, reckless, callous, and deliberately indifference to Mr. Morton's federally protected rights.

138. That the Defendant officers and EMT operators are therefore liable for the injuries caused to the Plaintiff and the damages arising thereof from the objectively unreasonable use of force against the Plaintiff.

139. The Defendants engaged in the conduct described by this Complaint willfully, maliciously, and in bad faith, and in reckless disregard of Plaintiff's federally protected constitutional rights.

140. That the individually named Defendants and the unknown John Does who are police officers withing the New York City Police Department, acted in concert and jointly with each other.

141. The acts or omissions of Defendants as described herein intentionally deprived Plaintiff of his constitutional rights and caused him physical and emotional harm.

142. These individual Defendants were intentional and deprives the Defendants from the consideration of qualified immunity.

143. As a proximate result of Defendants' unlawful conduct, Plaintiff has suffered physical and emotional injuries, and other damages and losses as described herein entitling him to compensatory damages, in amounts to be determined at trial.

**AS AND FOR AN SIXTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF, AGAINST POLICE OFFICERS ROSARIOS AND NEW YORK
CITY FIRE DEPARTMENT EMT OPERATORS SHANELL HOLLIS AND
ROBERT PIKE FOR "ASSAULT."**

144. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 143", with the same force and effect as though more fully set forth at length herein.

145. That the Defendants their agents, servants and /or employees, without cause or justification, or the consent of the Plaintiff, intentionally placed the plaintiff in fear of imminent physical harm.

146. That by reason of the foregoing the Plaintiff Ashburne Morton has been unlawfully injured and seeks compensation against the Defendant police officers Jamimet Rosario, and John Does 1-3, and EMT operators Hollis and Pike for Plaintiff's past, present and future pain, and suffering, and emotional distress.

147. That the conduct of the Defendants as more fully described in the proceeding paragraphs was intentional and which placed the Plaintiff in apprehension of fear and of imminent harm and offensive contact.

148. That the Defendant threatened the Plaintiff physical well-being which resulted in Plaintiff's arrest.

149. Plaintiff had reasonable apprehension of imminent harm due to the actions of Rosario, Hollis, Pike and the unknown police officers, John Does 1-3.

150. As a proximate result of Defendants' unlawful conduct, Plaintiff has suffered physical and emotional injuries, and other damages and losses as described herein entitling him to compensatory damages, in amounts to be determined at trial.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS
JAMIMET ROSARION, SHANELL HOLLIS, ROBERT PIKE AND JOHN DOES,
1-3, FOR BATTERY.**

151. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "150" with the same force and effect as though more fully set forth at length herein.

152. That officers Rosario and John Does 1-3, on or July 31, 2020 ,without cause, or justification, and without the consent of the Plaintiff, did wantonly, unlawfully, and intentionally engaged in unlawful physical contact which harmed the Plaintiff as set forth above.

153. That officer Rosario and the John Does Police officers grabbed Mr. Morton while he was inside the New York Renal Associates' office seeking treatment for his dialysis.

154. That the Plaintiff began to seek explanations from the manager of the New York Renal Associates office why the Center refuse to treat him after Plaintiff was told by his prior medical facility to continue his dialysis treatment at the Renal Center.

155. That Mr. Morton was not accorded the respect and consideration given other patients and was instead threatened and arrested and forced inside a New York City ambulance with his hands placed in handcuffs and taken against this will to the Bronx Lebanon Hospital where the EMT operators attempted to force the Plaintiff to obtain treatment from a medical facility that the Plaintiff had emphatically refused to allow such treatment.

156. That as a result of the foregoing battery Plaintiff was rendered sick, sore, and was caused to suffer emotional injuries.

157. That Defendant's unlawful conduct was the direct and proximate cause of Plaintiff's injuries.

158. That Mr. Morton has suffered and will continue to suffer agony in body and mind.

159. That by reason of the foregoing, Plaintiff has been damaged and is hereby seeking compensation for his injuries against the Defendants.

**AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS
JAMIMET ROSARIO, SHANELL HOLLIS, ROBERT PIKE AND JOHN DOES 1
THROUGH 3, FOR INTENTIONAL INFLICTION OF EMOTIONAL STRESS.**

160. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "159" with the same force and effect as though more fully set forth at length herein.

161. That the Defendant police officers, and the EMT, operators Hollis and Pike along with the John Does as police officers in the NYPD , engaged in actions intended to inflict emotional trauma on the Plaintiff,

162. That by reason of the foregoing, the Plaintiff has suffered physical pain and mental and emotional distress due to Defendants unlawful and reckless actions as more fully described in the preceding paragraphs.

163. Mr. Morton's action against the Defendants for the Intentional Infliction of Emotional Distress was caused by the individual Defendants who intentionally and without reason, privilege or probable cause forced Mr. Morton inside an ambulance in handcuffs and drove him to a hospital for an anticipated forced medical attention against Plaintiff's consent.

164. The acts committed against the Plaintiff by the defendant police officers was clearly intended to cause the Plaintiff extreme physical damage to his mind and body by willfully and deliberately forcing Plaintiff to seek medical treatment at Bronx Lebanon Hospital in handcuffs only because Plaintiff sought information at the New York Renal Center regarding his scheduled dialysis treatment which the Center failed to perform.

165. That the Defendants intentionally placed Plaintiff in apprehension of fear and imminent harm and offensive contact by their use of unlawful and unprivileged use of force against the Plaintiff which resulted in serious emotional injuries to the Plaintiff, for which Plaintiff now seeks compensation.

166. For the reasons set forth herein, Plaintiff has been injured.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR RESPONDEAT SUPERIOR.

167. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “166” with the same force and effect as though more fully set forth at length herein.

168. That at all relevant times the Defendants acted under pretense of color of state law and are acts were without authority of law in abuse of its powers.

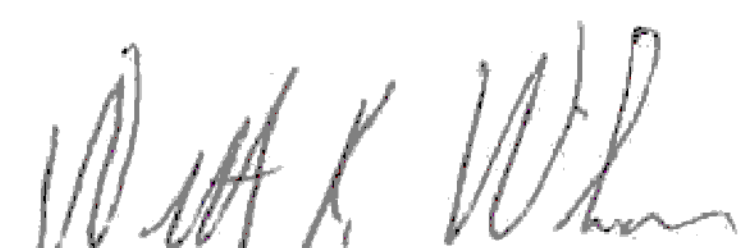
169. That the conduct of the Defendants occurred while they were on duty during the course and scope of their duties and functions as New York City Police Department employees and as employees of the New York City Fire Department, as agents and employees of the Defendant City of New York.

170. The City of New York is therefore liable to Plaintiff under the common law of Respondeat Superior.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

- A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.
- B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.
- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: September 23, 2020
 Bronx, New York

By 
 Welton K. Wisham, Esq.
 The Law Office of Welton K. Wisham
 1200 Waters Pl, Suite 105
 Bronx, New York 10461
 Attorney for the Plaintiff
 (718) -924-3557 office
 (718) -678-8062 Fax
 Email: wkwisham@optonline.net

TO
 James E. Johnson
 Corporation Counsel City of New York
 100 Church Street
 New York, New York 10007
 Via ECF